

**RAJIV GANDHI PROUDYOGIKI
VISHWA VIDYALAYA, BHOPAL (M.P.)
MASTER OF PLANNING (URBAN AND
REGIONAL PLANNING)**

SEMESTER – IV

RAJIV GANDHI PROUDYOGIKI VISHWA VIDYALAYA, BHOPAL (M.P.) MASTER OF PLANNING (URBAN AND REGIONAL PLANNING)

SEMESTER – IV

URP-221, LEGAL ISSUES AND PROFESSIONAL PRACTICE

OBJECTIVE

- To make aware of the importance of planning laws, legislations, acts, regulations and professional practices in planning.

CONTENT

- **Unit-1 Basic Terminologies**
The meaning, significance and objectives of planning legislation; Evolution of planning legislation and over view; Concept of Law; Sources of law; meaning of the term of law, legislation, ordinance, bill act, regulations and bye-laws; doctrine of separation of powers; judiciary, legislature and executive – rule of law – significance of law and its relationship to urban planning.
- **Unit-2 Legislation Related to Use and Control of Land**
Indian Constitution; Introduction to Land Acquisition Act, 1894; betterment charges and compensation provisions in planning laws; Judicial precedents; Legislation controlling use of land, ULCRA; Tools of development control-zoning, sub-division regulations, building regulations, model building byelaws, Government Orders, fire and airport regulations; special regulations like TDR, accommodation Reservation; Rent Control Acts; Apartments Ownership Acts; Contract Act; Transfer of Property Act; The estate duty Act; Slum improvements and clearance Acts; TOD, PPP.
- **Unit-3 Urban and Regional Planning Acts**
Municipal Acts; Improvements Trust Acts; Development Authority Acts; Model town and country planning Acts; Legislations relating to urban art commissions; 73rd and 74th Constitutional Amendment Act of India; Co-operative Societies Acts; PIL etc Special Purpose legislations viz; Special Economic Zones (SEZ); Special Investment Region (SIR); National Data Sharing and Accessibility Policy-2012 (NDSAP-2012); Spatial Data Infrastructure (SDI) Act.
- **Unit-4 Environmental Legislations**
Evolution of environmental laws in India; Law of Torts, the first environmental law; National Environmental Policy – Pollution control acts – air, water and environmental protection acts; Forest and wildlife act; other important international environmental laws; Hazardous waste management and handling rules/ biomedical rules/ solid waste management rules; environment tribunal act; archaeological sites and remains of national importance; Conservation of natural resources including mining and forestry acts; MOEF guidelines and notifications.
- **Unit-5 Professional Practice**
Role of Planner; relationship with client, developers, institutions contractors and experts; Role and responsibility of planning consultants, professional ethics, code of conduct and scale of professional charges; Role in interdisciplinary groups; Formulation of project proposal and outlines; consultancy agreements, contracts and inviting tenders; Nature of engagements, agreements and safeguards, completion and copyrights; Aims and objects of the professional institute, sister bodies; the arbitration and conciliation Act; The Indian Contract Act.

COURSE OUTCOME

Upon completion of the course, the students will be able:

- Attain proficiency in urban finance, focusing on municipal finance and development finance.
- To recognize and articulate the financial challenges confronted by urban local bodies.
- Propose effective financial management systems to bolster organizational capacity for urban reforms.
- To understanding of the intricacies of urban financial structures and their legal implications.
- Apply acquired knowledge to analyse and address complex financial issues within urban planning contexts.

REFERENCES

- Campbell, H. and Marshall, R. (1998) *Acting on Principle: Dilemmas in Planning Practice*, *Planning Practice and Research*, Vol.13, No.2, pp. 117-128.
- Institute of Town Planners, India (1986), *Report of the Task Force on Professional Matters Urban Development and the Town Planner*, ITPI, New Delhi.
- Kulshreshtha, S.K. (2012), *Urban and Regional Planning in India – A Handbook for Professional Practice*, SAGE Publications India Private Limited, New Delhi.
- Madhusudan Apte, Prakash (2013), *Urban Planning & Development an Indian Perspective*.http://books.google.co.in/books?id=4Z_4g5Dd8RkC&printsec=frontcover#v=onepage&q&f=false

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SEMESTER – IV

URP-222, URBAN DEVELOPMENT FINANCE

OBJECTIVE

- Development plans and policies get implemented through planning and development projects. Funding of these projects is critical for the implementation of plans and policies.
- It is in this context that this course will introduce concepts of development finance, revenue, and municipal finance. This course intends to develop a logical reasoning ability in analysing the innovative methods of financing for urban infrastructure.

CONTENT

- **Unit 1: Overview of Development Finance**
Understanding development finance: approaches, concepts, credit ratings; Role of municipalities and panchayats, development authorities, infrastructure and industrial development corporations, special economic zones and special purpose vehicles.
- **Unit 2: State and Municipal Finance**
Central Finance Commission and state finance commissions: constitution, powers and functions; consolidated fund of central and state; Financing municipalities and panchayats and financial categorisation of sources of revenue; Reforms in municipal and panchayat finances, rationalisation of user charges, and streamlining of tax administration.
- **Unit 3: Public Private Partnership (PPP)**
Partnerships and alliances: concepts, need, preconditions for partnerships; Advantages of collaboration; Methods of promoting public private partnerships; Policies, statutes, regulations and administrative procedures for forging partnerships; Role of government as partner, regulator and enforcer of laws; Principles of PPP: contractual framework, selection of service provider, payment mechanism, monitoring and evaluation, risk and revenue sharing; and Models contract agreement.
- **Unit 4: Innovative Methods for Financing Urban Development**
Monetary Exaction: betterment levy, impact fees, external development charges and vacant land development tax; Land exactions: Transfer of development rights, town planning schemes, monetisation of underutilised public assets; Valorisation charges; Debt financing, partnership financing, financing through intermediaries, Municipal bonds, and pooled financing; Funding of development plan proposals and projects. Market mechanisms for raising finances, corporate finance.

COURSE OUTCOMES

Upon completion of the course, the students will be able:

- To express understanding about the major aspects of development finance including municipal finance; and to develop specialized knowledge and relevant skills in urban finance.
- To demonstrate understanding about the financial challenges being faced by urban local bodies.

- To propose effective financial management systems with enhanced organizational capacity for urban reforms.

REFERENCES

- Bell, C. (2003) *Development Policy as Public Finance*, Oxford University Press, Oxford.
- Fisher, R.C. (2018) *State and Local Public Finance*, Routledge, New York.
- Kaushik, B. (2003) *Analytical Development Economics: The Less Developed Economy Revisited*, MIT Press, Cambridge, MA.
- Mohanty, P.K. (2016) *Financing Cities in India: Municipal Reforms, Fiscal Accountability and Urban Infrastructure*, Sage, New Delhi.

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SEMESTER – IV

URP-223, THESIS

OBJECTIVE

- The primary purpose of a thesis is to independently undertake a piece of research involving a deeper study of theories and frameworks, develop elegant research questions and connect with empirical evidences for creating new knowledge.
- To enhance the design/ research abilities and apply the knowledge gained skills and developed and professionalism.
- Prepare independent report on the research work commenced during the semester.

CONTENT

The purpose of a postgraduate thesis is to take forward the literature review involving a deep study of theories and frameworks and develop elegant research questions. It is expected that a postgraduate student is clearly able to explain how a piece of research adds new knowledge to the existing body of knowledge in a field and show its practical significance to the profession of planning. Without a clearly defined purpose and strong theoretical grounding, the thesis is fundamentally flawed.

- **Unit-1 Refining of Methodology and Research Design**
Reconnaissance survey and checking of data availability; finding out the data gaps; Refining and Finalisation of Methodology and Research Design; questionnaire preparation and survey design.
- **Unit-2 Data Collection and Compilation**
Visit to the study area; meeting and discussion with relevant authorities and groups for collecting tangible and intangible information relevant for the proposed study; data collection; coding and data compilation.
- **Unit-3 Analysis and Discussion of Results**
Data analysis, identifying prospects and concerns for the study area in the Domain of Research; Evaluating the Thrust areas.
- **Unit-4 Alternative Proposals and their Evaluation**
Alternative Scenario Building; Considering Alternative possible outcomes; “What-If” or Simulation Analysis; Discussions on Proposals and their Evaluation.
- **Unit-5 Final Proposal Formulation**
Specific proposals specifically in spatial terms; Report structuring and chapterisation.

COURSE OUTCOME

After completing this course, the students would be able:

- To formulate independently a research programme on a chosen topic in order to contribute new knowledge to the field of study.
- Articulate response to various authors, books and paper and move from argument to argument in succinct and logical way to identify a research gap.
- Select a research design and appropriate tools & techniques for data analysis.
- Conduct data analysis and analyse scenarios related to development

- Formulate development related proposals or solutions
- Write and present a Research proposal.

REFERENCES

- Booth, W.C., Colomb, G., Williams, J.M., Fitzgerald, W. (2016) *The Craft of Research*, University of Chicago Press, Chicago.
- Eco, U. (2015) *How to Write a Thesis*, MIT Press, Massachusetts.
- Oliver, P. (2008) *Writing your Thesis*, Sage, New Delhi.

NOTE

The students are required to carry out independent research and prepare a thesis on a topic on urban planning selected by them and approved the faculty under the supervision of a research guide allocated by the department.